

23NWCV02312 23NWCV02312

County: los-angeles

Division: Civil Law and Motion

Department: C

Hearing date: 2026-09-01

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Case Number: 23NWCV02312 Hearing Date: September 1, 2026 Dept: C

PATRICK HIGGINS vs LBJ

HEALTHCARE PARTNERS, INC., Case No. 23NWCV02312

This wrongful death action was filed on July 24, 2023. Two separate Motions for Summary Judgment, one filed by Defendant LBJ Healthcare Partners, Inc., and the other filed by Defendants Special Service for Groups, Inc. and Linda Torres, are scheduled to be heard on September 15, 2026. Trial is scheduled for October 19, 2026. Defendants Special Service for Groups, Inc. and Linda Torres apply ex parte for an order continuing their Motion for Summary Judgment (and trial) to cure a defect in service of the exhibits to the motion. In the alternative, Defendants request that the Court excuse the service defect to allow the hearing to proceed as scheduled on September 15, 2026. Defendants filed their Motion for Summary Judgment on May 19, 2026. After Plaintiffs filed their opposition to the motion on August 26, 2026, Defendants became aware for the first time that the exhibits were not served with the original motion. (Rosenberg Decl., ¶4.) Defendants immediately served the exhibits on August 27, 2026. (Id.) Counsel for Plaintiffs states that on or about August 4, 2026, counsel spoke with counsel for Defendants and informed him that SSG had not properly filed evidence with the Court. (Smith Decl. in Support of Opposition to Motion for Summary Judgment, ¶16.) Plaintiffs also assert that they are still waiting for production of the contract between the Department of Mental Health and Defendant SSG. Moreover, the deposition of Sonia Garcia, decedent's case manager, has not been taken which would be necessary and helpful to provide further briefing and evidence in support of Plaintiff's opposition(s). (Id., ¶19.) The Court will confer with the parties regarding the necessity for a continuance and the length of any such continuance. Moving party to give notice.